

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing free speech protections for private sector employees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>9/22/2025</i>

HOUSE No.

By Representative Gentile of Sudbury, a petition (subject to Joint Rule 12) of Carmine Lawrence Gentile relative to free speech protections for private sector employees. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing free speech protections for private sector employees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 150E of the General Laws is hereby amended by adding the following section:-

2 Section 16. (a) For the purposes of this section the following words shall, unless the
3 context clearly requires otherwise, have the following meanings:

4 “Political matters”, matters relating to elections for political office, political parties,
5 proposals to change legislation, proposals to change regulation and the decision to join or
6 support any political party or political, civic, community, fraternal or labor organization.

7 “Religious matters”, matters relating to religious affiliation and practice and the decision
8 to join or support any religious organization or association.

9 (b) Except as provided in subsections (c) and (d) of this section, any employer, including
10 the commonwealth and any instrumentality or political subdivision thereof, who subjects or
11 threatens to subject any employee to discipline or discharge on account of:

(i) the exercise by such employee of rights guaranteed by the first amendment to the United States Constitution; provided, that such activity does not substantially or materially interfere with the employee's bona fide job performance or the working relationship between the employee and the employer, shall be liable to such employee for damages caused by such discipline or discharge, including punitive damages and for reasonable attorney's fees as part of the costs of any such action for damages; or

(ii) such employee's refusal to: (A) attend an employer sponsored meeting with the employer or its agent, representative or designee, the primary purpose of which is to communicate the employer's opinion concerning religious or political matters or (B) listen to speech or view communications, the primary purpose of which is to communicate the employer's opinion concerning religious or political matters, shall be liable to such employee for the full amount of gross loss of wages or compensation, with costs and such reasonable attorney's fees as may be allowed by the court. If the court determines that such action for damages was brought without substantial justification, the court may award costs and reasonable attorney's fees to the employer.

(c) Nothing in this section shall prohibit:

(i) an employer or its agent, representative or designee from communicating to its employees any information that the employer is required by law to communicate, but only to the extent of such legal requirement;

(ii) an employer or its agent, representative or designee from communicating to its employees any information that is necessary for such employees to perform their job duties;

33 (iii) an institution of higher education or any agent, representative or designee of such
34 institution, from meeting with or participating in any communications with its employees that are
35 part of coursework, any symposia or an academic program at such institution;

36 (iv) casual conversations between employees or between an employee and an agent,
37 representative or designee of an employer, provided participation in such conversations is not
38 required; or

39 (v) a requirement limited to the employer's managerial and supervisory employees.

40 (d) The provisions of this section shall not apply to a religious corporation, entity,
41 association, educational institution or society that is exempt from the requirements of Title VII of
42 the Civil Rights Act of 1964 pursuant to 42 U.S.C. 2000e-1(a) or is exempt from chapter 151B,
43 with respect to speech on religious matters to employees who perform work connected with the
44 activities undertaken by such religious corporation, entity, association, educational institution or
45 society.